

4.	25CV0172	AUSTIN et al v. HANSEN et al
Compel Discovery Responses/Deem Requests for Admission Admitted/Substitution of Plaintiff		

This is a dispute over an easement (“Forest Brook Lane”) that crosses “Lot 165, the Common Area,” a 26-acre lot initially owned by the Western Grizzly Park Owners Association (“Grizzly Park”) pursuant to a deed executed in 1981. Complaint, Exhibit E. Both Plaintiffs and Defendants claim rights to this easement. The Complaint alleges that Defendants have “asserted physical control” over the easement in violation of Plaintiffs’ rights, and asserts claims for quiet title, nuisance, and declaratory and injunctive relief.

Motion to Compel Further Discovery Responses

Defendants served the first set of discovery requests on December 12, 2025, and responses were received on January 15, 2026. Defendants have requested the Court to compel further responses to specific discovery requests listed below.

Requests for Admissions

Defendants argue that the following responses effectively deny the Request for Admission while simultaneously admitting underlying facts;

RFA No. 7: Admit that you have never performed maintenance or repairs on Forest Brook Lane pursuant to a recorded agreement.

Response: DENY that I have performed maintenance or repairs on Forest Brook Lane, but ADMIT that the maintenance and repairs I completed on Forest Brook Lane were not pursuant to a recorded agreement.

RFA No. 8: Admit that you have never paid road maintenance costs pursuant to a recorded Road Maintenance Agreement governing Forest Brook Lane.

Response: DENY that I have paid for road maintenance on Forest Brook Lane, but ADMIT that I have not paid for maintenance on driveway improvements pursuant to a Road Maintenance Agreement.

RFA No. 18: Admit that you do not possess written authorization from all three owners of Forest Brook Lane permitting your use of the road.

Response: ADMIT that I do not possess written authorization from the three individuals mentioned, but DENY that they are the owners of the portion of Forest Brook Lane that runs through Lot 165 and that I need to possess their written authorization to use the road.

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RFA No. 20: Admit that no owner of Forest Brook Lane is named as a plaintiff in this case.

Response: ADMIT that no other easement holder of Forest Brook Lane is named as a plaintiff in this case, but DENY that the Defendants is [sic] and owner of Forest Brook Lane.

RFA No. 21: Admit that you did not serve all owners of Forest Brook Lane with the Complaint in this action.

Response: ADMIT that I did not serve all easement holders of Forest Brook Lane with the Complaint in this action, but DENY that I served any owners of the portion of Forest Brook Lane in question.

A Code-complaint response to Requests for Admissions requires answers “as complete and straightforward as the information reasonably available to the responding party permits.” Code of Civil Procedure § 2033.220(a). Responses are required to “Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party [and] [d]eny so much of the matter involved in the request as is untrue.” Code of Civil Procedure § 2033.220(b).

As to RFA Nos. 7 and 8, the Court agrees that the responses are nonsensical and fail to answer the question. As to RFA Nos. 18, 20, and 21, the Court finds that the Plaintiff has answered the underlying factual question even though it is worded in a way to accept Plaintiff’s legal positions and to deny Defendants’ legal positions. Defendant could have worded the questions in a way to avoid complicating the answers with legal conclusions, but the underlying factual questions have been answered.

Defendants argue that the following Requests for Admission responses provide narrative argument instead of a direct admission or denial.

RFA No. 9 & 10: Admit that your property taxes/property tax assessments do not show an assessment for/do not list you as owning any portion of Lot 165/any portion of Lot 165 or any roadway interest associated with Forest Brook Lane.

Response: Property taxes are assessed along with common area of Unit 8. There is no line item assessment for the common area property, nor is there a separate value assigned to the common area of Unit 8.

RFA No. 11: Admit that no court has issued an order adjudicating that you possess a legal right to use Forest Brook Lane.

Response: Deny the court in this case has ruled a high likelihood of victory in this matter pursuant to the injunction that was awarded to Responding Party.

RFA No. 28 & 29: Admit that the parcels on Forest Brook Lane have never granted you written permission to alter, control or regulate use of Forest Brook Lane./Admit that you do not possess any written agreement authorizing you to regulate traffic or access on Forest Brook Lane.

Response: Deny. Responding Party has never engaged in alleged behavior. Defendants however have engaged in said behavior and is the cause of this lawsuit.

The Court agrees that RFAs Nos. 9, 10, 11, 28 and 29 fail to answer the question stated in the Request for Admission.

Requests for Production of Documents

As to the Requests for Production of documents (“RFP”), Defendants argue that the responses fail to clearly state whether responsive documents exist, redact documents without a valid privilege or a privilege log.

“A party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:” (1) a statement that the party will comply, (2) a statement that the party lacks the ability to comply, or (3) an objection to the demand or request made. Code of Civil Procedure §2031.210.

RFP No. 2: This RFP requests any documents that identify Plaintiffs’ parcel as a grantee, beneficiary or holder of any interest arising from the 1981 deed from which the Forest Brook Lane was created. Plaintiffs response calls the inquiry vague and responds as if the RFP requested any deed in which Plaintiff is named and denies that there are any documents responsive to the request.

The Court finds this response to be non-responsive. Defendant is very clearly requesting any documentation of the property ownership claims that underlie Plaintiff’s lawsuit against them.

RFP No. 3: This RFP requests any documents that establish any ownership interest held by the local water district. Plaintiff’s response denies any such documents exist. This is an adequate response.

RFP No. 4: This requests “all Road Maintenance Agreements, contracts, invoices, receipts, canceled checks or other documents evidencing payment for maintenance or repairs of Forest Brook Lane” by Plaintiff. Plaintiff’s response was an invoice related to Plaintiff’s private driveway on Pine Ridge Drive, not Forest Brook lane. This is not responsive to the request.

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RFP No. 7: “Produce all corporate records, filings, membership lists or officer rosters identifying [Plaintiff] as an owner, member, or officer of the Western Grizzly Parks Owners Association.” Plaintiff’s response is nonsensical, and the documents referenced in the response relate to the Grizzly Park organization but are not responsive to the request.

RFP No. 9: “Produce all documents that you have recorded, or contend should have been recorded, in the Official Records of El Dorado County that purport to grant, evidence, or establish any easement, right of way or access rights over Forest Brook Lane.: Plaintiff responds as to unrecorded documents, but does not respond as to any recorded documents.

RFP No. 10: Plaintiffs’ response is that no document exists that are responsive to the request, which is an adequate response.

RFP No. 11: Apart from avoiding Defendants’ characterization of “owners of Forest Brook Lane” by interpreting them as “beneficiaries of the deeded easement”, the response states that no such document exists, which is an adequate response.

RFP No. 12: The form of the question in RFP No. 12 is such that Plaintiff’s objection that RFP No. 12 is vague and ambiguous is sustained.

RFP No. 13: Plaintiff indicated that no responsive documents exist, which is an adequate response.

RFP No. 18 & 22: These RFPs request copies of certain correspondence with various neighbors, to which Plaintiff asserts privileges by stating that the information requested is “confidential, proprietary or protected by privacy rights.” Some materials were produced but they were redacted; Defendant notes that the materials that were produced reference other communications that were not produced.

The right to privacy protects the “ ‘individual's reasonable expectation of privacy against a serious invasion.’ ” (*Los Angeles Gay & Lesbian Center v. Superior Court* (2011) 194 Cal.App.4th 288, 307, 125 Cal.Rptr.3d 169 (*Los Angeles Gay & Lesbian Center*), quoting *Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 370, 53 Cal.Rptr.3d 513, 150 P.3d 198.) “If the invasion of privacy is serious, then the court must balance the privacy interest at stake against other competing interests, which include the interest of the requesting party, fairness to litigants in conducting the litigation, and the consequences of granting or restricting access to the information.” (*Ibid.*)

Snibbe v. Superior Ct., 224 Cal. App. 4th 184, 194 (2014).

The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a

threatened intrusion that is serious. (*Id.* at pp. 35–37, 26 Cal.Rptr.2d 834, 865 P.2d 633.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (*Id.* at pp. 37–40, 26 Cal.Rptr.2d 834, 865 P.2d 633.)

Williams v. Superior Ct., 3 Cal. 5th 531, 552 (2017).

Plaintiff acknowledges this legal standard in his Opposition to the motion, but has not articulated any legally protected privacy interest that prevents production of unredacted documents.

Code of Civil Procedure § 2031.240 provides the requirements for asserting a privilege in a document production request:

(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. . . .

The response to this RFP does not meet the statutory requirements and is inadequate.

RFP No. 21: Plaintiff indicated that no responsive documents exist, which, if true, is an adequate response.

Substitution of Plaintiff

Plaintiff Donald Austin seeks to have himself substituted in as Plaintiff in place of Sheila Austin, who is deceased.

Defendant's Opposition notes that the proof of service only indicates service to Greg Hansen, not to Janelle Hansen. However, the notice was delivered to the mailing address shared by both Defendants, who both filed a timely opposition to the motion.

Defendants further argue that the motion fails to meet the requirements of Code of Civil Procedure § 377.31-377.32, in that Plaintiff has not submitted evidence that he is the successor

in interest to Sheila Austin, other than his own Declaration, dated and filed on March 13, 2026. The applicable statute requires certain content be included in the Declaration, and Plaintiff's Declaration meets these requirements. The statute does not require Plaintiff to file documentary evidence of Austin Family Trust or his appointment as trustee.

Finally, Defendants argue that neither Plaintiff has standing to maintain the lawsuit in the absence of any property rights that would support their lawsuit. This is an argument that goes to the merits of the case, and does not prevent the substitution of Donald Austin as the successor in interest to Sheila Austin as a procedural matter.

Attorney's Fees

Code of Civil Procedure § 2033.290(d) provides: "The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2033.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Code of Civil Procedure § 2033.010 defines "misuse of the discovery process" to include "making, without substantial justification, an unmeritorious objection to discovery", such as in this case, asserting a right to privacy without to withhold requested information without providing any justification"; "making an evasive response to discovery" and "opposing, unsuccessfully and without substantial justification, a motion to compel . . . discovery."

Code of Civil Procedure § 2033.030 authorizes the Court to impose a monetary sanction against parties engaged in misuse of the discovery process, to pay the reasonable expenses including attorney's fees, incurred by anyone as a result of that conduct.

The Court finds that evasive and non-responsive answers to Defendants' discovery requests and the assertion of unsubstantiated privileges comes within the definition of "misuse of the discovery process" and awards attorneys' fees and costs to Defendants according to proof of the costs of bringing this motion to compel further responses.

TENTATIVE RULING #4:

DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES IS GRANTED AS TO REQUESTS FOR ADMISSIONS NOS. 7, 8, 9, 10, 11, 28, AND 29, AND AS TO REQUESTS FOR PRODUCTION NOS. 2, 4, 7, 9, 18 AND 22.

DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES IS DENIED AS TO REQUESTS FOR ADMISSIONS NOS. 18, 20 AND 21 AND REQUESTS FOR PRODUCTION NOS. 3, 10, 11, 12 AND 21.

ATTORNEYS' FEES AND COSTS ARE AWARDED TO DEFENDANTS FOR THE COSTS OF BRINGING THE MOTION TO COMPEL FURTHER RESPONSES TO DISCOVERY, ACCORDING TO PROOF.

THE MOTION FOR SUBSTITUTION OF THE PLAINTIFF IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.